Clause statutes can bind only those who voluntarily and knowingly undertake obligations by agreement with the federal government. Because that essential element is missing here, we affirm the judgment of the Fifth Circuit.

It is so ordered.

JUSTICE JACKSON, with whom JUSTICE SOTOMAYOR and JUSTICE KAGAN join, dissenting.

Congress enacted the Religious Land Use and Institutionalized Persons Act of 2000 (RLUIPA) to ensure that state and local prisons respect prisoners' right to religious exercise. Congress might have opted to accomplish this through contracts with the prisons it funds. Instead, it passed a law.

RLUIPA requires state and local prisons that accept federal funding to accommodate prisoners' religious exercise more generously than the Constitution mandates. Like many, this law comes with an enforcement mechanism: To ensure compliance, RLUIPA authorizes an impacted prisoner to sue any prison employee who violates the statute. Such suits, the statute provides, may proceed against the employee in the employee's individual capacity and may yield "appropriate relief." 42 U. S. C. §§ 2000cc–2(a), 2000cc–5(4)(A).

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Neither respondents nor the Court contests Congress's power to impose RLUIPA's substantive directive accommodating religious freedom. The majority nevertheless adopts the peculiar position that Congress is powerless to create, and a State is powerless to accept, the natural next step: a damages remedy against officials who violate that directive.

This severance of rights and remedies is a sleight of hand; it comes by way of the majority's full-throated endorsement of a contract analogy even though what secures the rights at issue is not a contract but a law. Today's decision magically transforms a federal statute into an invitation to be accepted or declined, deemed binding only if each particular defendant has explicitly agreed to be penalized. No matter that laws,

as opposed to contracts, don't ordinarily work this way. The trick here is the majority's effortless conflation of *law making* and *agreement making*—two different sources of binding authority.

The majority's analysis is spellbindingly straightforward: Spending Clause statutes are contracts, and contracts bind only those who consent. *Ante*, at 67–70. But pulling this rabbit out of the hat requires misconstruing the Spending Clause and the Necessary and Proper Clause, and ignoring decades of precedent affirming Congress's authority to use the power of the purse to govern. In the end, the Court reduces some of Congress's greatest legislative achievements—federal laws that secure civil rights, environmental stability, healthcare, and more—to nothing more than the wheelings-and-dealings of an especially wealthy private party. Because I would not so trivialize a federal statute or the constitutional powers pursuant to which it was passed, I respectfully dissent.

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I

It is not often that a real-life incident so clearly illustrates Congress's reasons for adopting legislation, or the Constitution's wisdom in enabling it.

Damon Landor's Rastafarian faith requires him to "let the locks of the hair of his head grow." The Holy Bible, Numbers 6:5 (King James Version). For a Rastafari like Landor, locks are "the physical embodiment of . . . spiritual identity and connection to God." See Brief for Rastafari Scholars as *Amici Curiae* 3. Landor preserved this connection—through what is known as the Nazarite Vow—for two decades, allowing his hair to grow to his knees. And he continued for most of a brief stint in Louisiana jails in 2020: At the two facilities that housed Landor for the bulk of his prison time, officials accommodated his vow without incident.

They did so not just because it was the right thing to do but also because federal law required it. This Court's decision in *Holt* v. *Hobbs*, 574 U. S. 352 (2015), held that RLUIPA

mandated an accommodation for prisoners' religiously motivated beards, *id.*, at 369–370, and thus strongly suggested that Landor was entitled to a similar accommodation. Even more on point, the Fifth Circuit—which covers Louisiana—had precedent specifically requiring accommodation of the Nazarite Vow. See *Ware* v. *Louisiana Dept. of Corrections*, 866 F. 3d 263 (2017).

Landor knew of *Ware*. He also knew of the threat that jails posed to his hair (and faith) despite it. So when he was transferred to a third jail with three weeks remaining in his sentence, he came prepared. He carried with him a copy—a physical, printed copy—of *Ware*. Upon arrival, Landor presented the case to the intake guard. "Unmoved," the guard "threw Landor's papers in the trash." 82 F. 4th 337, 340 (CA5 2023) (case below). The guard summoned the warden, who demanded documentation from Landor's sentencing judge corroborating his religious beliefs. "When Landor couldn't instantly meet that demand, two guards carried him into another room, handcuffed him to a chair, held him down, and shaved his head." *Ibid.*

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After serving his time, Landor sued the Louisiana Department of Corrections (LDOC), the jail, the warden, the department's secretary, and John Doe officers 1–10 in their individual and official capacities. In addition to state-law claims, he brought claims under RLUIPA as well as under 42 U. S. C. § 1983 for violations of his First, Eighth, and Fourteenth Amendment rights, seeking both injunctive relief and damages.

Respondents successfully moved to dismiss Landor's complaint. Landor's release from prison, the District Court explained, mooted his bid for injunctive relief. Landor's RLUIPA claim thus remained only by dint of his request for damages against the defendants in their individual capacities. But Fifth Circuit precedent held that RLUIPA does not permit individual-capacity suits. See *Sossamon* v.

Texas, 560 F. 3d 316, 327–329 (2009). With Landor's remaining claims failing for other reasons not relevant here, the District Court dismissed his complaint.

Landor had federal law on his side. And he did everything he could do in real time to ensure that prison officials knew that. We took this case to address whether Landor can seek money damages from the officials who ignored the law, held him down, and "uncrowned him before God." Brief for Rastafari Scholars as *Amici Curiae* 12.

II

Before us, respondents offer two reasons why Landor cannot obtain damages—one statutory and the other constitutional. First, they posit that RLUIPA's provision for "appropriate relief" against a "person acting under color of State law," 42 U. S. C. §§2000cc–2(a), 2000cc–5(4)(A), authorizes only injunctive relief. Second, they assert that, if RLUIPA purports to authorize individual-capacity damages lawsuits against prison officials, Congress will have exceeded the Constitution's limits on its spending power.

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The majority addresses only the constitutional argument, giving short shrift to the "well-established principle . . . that normally the Court will not decide a constitutional question if there is some other ground upon which to dispose of the case." *Bond* v. *United States*, 572 U. S. 844, 855 (2014) (internal quotation marks omitted); see *Ashwander* v. *TVA*, 297 U. S. 288, 347 (1936) (Brandeis, J., concurring); *Spector Motor Service, Inc.* v. *McLaughlin*, 323 U. S. 101, 105 (1944) (calling this principle "more deeply rooted than any other in the process of constitutional adjudication"). The majority is of course correct that the practice is prudential, not inexorable. *Ante,* at 65, n. 1. But there is prudence behind a prudential rule. The reasons for this one include "the delicacy" and "comparative finality" "of [the] function" of invalidating a congressional enactment, and "the consideration due to the

judgment of other repositories of constitutional power concerning the scope of their authority." *Rescue Army* v. *Municipal Court of Los Angeles*, 331 U. S. 549, 571 (1947).[1]

So I begin by rejecting respondents' statutory argument. RLUIPA plainly authorizes individual-capacity lawsuits for money damages. We have already interpreted identical language in RLUIPA's sister statute, the Religious Freedom Restoration Act of 1993 (RFRA), to allow for individual-capacity damages lawsuits. See *Tanzin* v. *Tanvir*, 592 U. S. 43 (2020). And RLUIPA's Spending Clause underpinning does not rob the statute's text of its plain meaning. Understanding this is necessary background for Part III, *infra*, my response to the majority's constitutional analysis.

A

RLUIPA is Congress's latest contribution to a long-running religious-liberty dialogue between Congress and this Court. That dialogue began, for our purposes, with *Employment Div., Dept. of Human Resources of Ore.* v. *Smith*, 494 U. S. 872 (1990). *Smith* is a seminal case in which the Court held that the First Amendment does not carve out religious exemptions from neutral and generally applicable laws. *Id.*, at 878–882. *Smith* "recognized, however, that the political branches could shield religious exercise through legislative accommodation." *Cutter* v. *Wilkinson*, 544 U. S. 709, 714 (2005). Taking up the invitation, Congress sought to "restore" via statute what *Smith* left unprotected by the Constitution. *Tanzin*, 592 U. S., at 45. The result was

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[1] I have no quarrel with the premise that a court may prioritize a constitutional question that is "readily resolved by our precedents" and "narrower" than the statutory alternative. *Ante*, at 65, n. 1. But the majority's approach has neither virtue. As I will explain, if our precedents "readily resolv[e]" this case, they do so in Landor's favor. And, while the consequences for RLUIPA are indeed narrower, the consequences for other Spending Clause statutes—not to mention congressional power more generally—are substantial.

RFRA, which forbade States and the Federal Government alike from substantially burdening religious exercise without compelling interest and narrow tailoring. See 42 U. S. C. §2000bb *et seq.*

Importantly, RFRA was not meant to be merely advisory; like the constitutional rights it sought to imitate, RFRA needed bite. Thus, "RFRA made clear that it was reinstating both the pre-*Smith* substantive protections of the First Amendment *and* the right to vindicate those protections by a claim." *Tanzin*, 592 U. S., at 50. It did so by authorizing "appropriate relief" for violations of its terms. §2000bb–1(c).

As enacted, RFRA applied to State and Federal Governments and their officials. *Tanzin*, 592 U. S., at 50. But RFRA's application to States and state officials was short lived: This Court would soon invalidate RFRA's application to the States as exceeding Congress's power under Section 5 of the Fourteenth Amendment. See *City of Boerne* v. *Flores*, 521 U. S. 507 (1997).

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Partially rebuffed, Congress tried again, enacting RLUIPA, 42 U. S. C. §2000cc *et seq.* In contrast to RFRA's "sweeping" scope, RLUIPA focused in narrowly on two discrete "areas of state and local action" in which Congress thought religious freedom faced particular threat: land-use regulation and institutionalized persons. *Sossamon* v. *Texas*, 563 U. S. 277, 281 (2011).

Other than the narrower coverage, RLUIPA practically mirrors RFRA, its "sister statute." *Ramirez* v. *Collier*, 595 U. S. 411, 424 (2022). Like RFRA, RLUIPA aims to "secure redress" for "undue barriers" to religious exercise. *Cutter*, 544 U. S., at 716–717. Like RFRA, RLUIPA features "an express private cause of action" (indeed, one "that is taken from RFRA"). *Sossamon*, 563 U. S., at 282. And like RFRA's, RLUIPA's express cause of action allows "[a] person" who suffers a violation of the statute to "assert" the violation "as a claim or defense in a judicial proceeding and

obtain appropriate relief against a government." §§2000cc–2(a), 2000bb–1(c).

Though neither statute elaborates on *what* a plaintiff can get, both specify *from whom* they can get it. Neither statute, that is, defines "appropriate relief." But both define "government" to mean, among other things, an "official" of the relevant sovereign and any "other person acting under color of" the relevant sovereign's law. §§2000cc–5(4)(A), 2000bb–2(1). Thus, like RFRA, RLUIPA creates "a claim" for "appropriate relief against" an "official" or "other person acting under color of" law. §§2000cc–2(a), 2000cc–5(4)(A), 2000bb–1(c), 2000bb–2(1).

B

As a matter of text, the question whether RLUIPA authorizes a claim for money damages is controlled by a unanimous holding this Court issued just six Terms ago. In *Tanzin*, 592 U. S. 43, we held that RFRA's materially identical terms authorize a damages claim. Our analysis was straightforward. First, we ascertained the *who*. We identified the potential defendants in a RFRA lawsuit, asking whether "injured parties can sue Government officials in their personal capacities." *Id.*, at 47. And to that question, we said that "RFRA's text provides a clear answer: They can." *Ibid.* RFRA authorizes lawsuits not just against a "government" as colloquially understood, but also against government "official[s]" and "other person[s] acting under color of law." §§2000bb–1(c), 2000bb–2(1). This language, we noted, echoes "one of the most well-known civil rights statutes: 42 U. S. C. §1983," which authorizes individual-capacity lawsuits against "'person[s]'" acting "'under color of any statute.'" *Tanzin*, 592 U. S., at 48.

With that answer in hand, we had no trouble discerning the *what*: "what 'appropriate relief' entails." *Ibid.* We acknowledged that the term is "'open-ended'" and "'inherently context dependent.'" *Id.*, at 49 (quoting *Sossamon*, 563 U. S., at 286). But given the *who*, the term had an obvious

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meaning: "In the context of suits against Government officials, damages have long been awarded as appropriate relief." *Tanzin*, 592 U. S., at 49.

So too here. Indeed, *Tanzin*'s reasoning applies with even more force to RLUIPA. RLUIPA's prison context redoubles *Tanzin*'s observation that damages will often be not only an appropriate form of relief but "the *only* form of relief" available. *Id.*, at 51. The Prison Litigation Reform Act's exhaustion requirement and strict limitations on injunctive relief in prisons, coupled with States' ability to transfer prisoners and thereby moot claims for injunctive relief, mean that withholding a damages remedy will often leave prisoners with no remedy at all.[2]

Accordingly, if RFRA's text authorizes individual-capacity lawsuits for money damages, RLUIPA's must do so as well.

C

It is true, though, that while the relevant statutory text is the same, the two statutes' fonts of power are not. It is on this observation that respondents rest their statutory argument. Unlike RFRA, RLUIPA relies on (as relevant here) the Spending Clause. Any divergence between the statutes' meanings, then, would have to come not from text but from constitutional inference—something particular to the Spending Clause compelling us *not* to adopt the same reading of that same statutory language. When interpreting Spending Clause legislation, we have used a contract analogy to require that Congress express its intent to impose conditions on the receipt of federal funds "unambiguously." *Barnes* v. *Gorman*, 536 U. S. 181, 186 (2002) (internal quotation marks omitted). Under our precedent, this is where contract-law

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[2] See Brief for Rights Behind Bars et al. as *Amici Curiae*; Brief for the National Police Accountability Project as *Amicus Curiae* 17–21. Congress was aware of the interaction between the Prison Litigation Reform Act (PLRA) and RLUIPA, as it expressly preserved the PLRA in RLUIPA. See 42 U. S. C. §2000cc–2(e).

principles should come into play—not as a substantive limitation on Congress's power (as the majority uses it today) but as a demand for statutory clarity.

But RLUIPA's authorization of an individual-capacity damages remedy is unambiguous for Spending Clause purposes. Our cases foreclose any argument to the contrary. Eight years before Congress passed RLUIPA, we considered the remedies available under Title IX, another Spending Clause statute—but one far less clear about remedies. See *Franklin* v. *Gwinnett County Public Schools*, 503 U. S. 60, 64–65 (1992). Where RLUIPA is strident, Title IX is coy: That statute has *no* express private right of action and, accordingly, *no* relevant remedial language. *Id.*, at 65–66, 71. Yet we still concluded that it authorized damages. We explained that, even absent explicit statutory language, "we presume the availability of all appropriate remedies unless Congress has expressly indicated otherwise." *Id.*, at 66. And we flatly rejected the notion "that the normal presumption in favor of all appropriate remedies"—including damages—"should not apply because Title IX was enacted pursuant to Congress' Spending Clause power." *Id.*, at 74; see also *id.*, at 69 (explaining that the available "appropriate relief" encompassed damages).[3]

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Against *Franklin*, respondents point to *Sossamon*. But *Sossamon* cannot bear anything close to the weight respondents place on it. There, we held that the same RLUIPA provision at issue today does not authorize damages in one

[3] *Franklin* is not alone in suggesting that monetary damages are "appropriate relief" for the violation of a spending statute. Take, for example, *Barnes* v. *Gorman*, 536 U. S. 181 (2002). There we observed that, because of the contract analogy, "a remedy is 'appropriate relief' " under a spending statute "only if the funding recipient is *on notice* that, by accepting federal funding, it exposes itself to liability of that nature." *Id.*, at 187. But we went on to explain that "[a] funding recipient is generally on notice that it is subject not only to those remedies explicitly provided in the relevant legislation, but also to those remedies traditionally available in suits for breach of contract"—including "compensatory damages." *Ibid.*

very particular context, one with a different *who*: "where the defendant is a sovereign." *Sossamon*, 563 U. S., at 286. Sovereigns enjoy sovereign immunity, and "[t]he essence of sovereign immunity . . . is that remedies against the government differ from 'general remedies principles' applicable to private litigants." *Id.*, at 291, n. 8. We did not question the obvious meaning of "appropriate relief" in lawsuits against individuals. See *ibid.*[4]

In short, RLUIPA leaves no need to "wonder . . . what sort of penalties might be on the table" for a violation of its terms. *Cummings* v. *Premier Rehab Keller*, 596 U. S. 212, 220 (2022). Like RFRA, RLUIPA "reinstat[ed] both the pre-*Smith* substantive protections of the First Amendment *and* the right to vindicate those protections by a claim," *Tanzin*, 592 U. S., at 50—with an individual damages remedy where appropriate.[5]

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[4] *Sossamon* thus teaches that the term "appropriate relief" is "'inherently context dependent.'" *Tanzin*, 592 U. S., at 49 (quoting *Sossamon*, 563 U. S., at 286). And the relevant lesson from *Tanzin* is that, in the context of a suit against an individual, "appropriate relief" plainly includes monetary damages. 592 U. S., at 49. Indeed, it can hardly mean anything else; as damages often are not available in official-capacity lawsuits, the prospect of damages is *the* reason to sue officers individually. See, *e.g.*, *Hafer* v. *Melo*, 502 U. S. 21, 25, 27 (1991). Thus *Tanzin* (interpreting RFRA) disposed easily of *Sossamon* (interpreting RLUIPA), invoking not the different congressional powers involved but the different defendants sued. See 592 U. S., at 51–52 ("*Sossamon* held that a State's acceptance of federal funding did not waive sovereign immunity to suits for damages under a related statute—[RLUIPA]—which also permits 'appropriate relief.' The obvious difference is that this case features a suit against individuals, who do not enjoy sovereign immunity" (citation omitted)).

[5] Because our Spending Clause precedent requires Congress to translate its intent unambiguously into the statute, I do not rely heavily on RLUIPA's legislative history. But make no mistake: Congress indisputably intended RLUIPA to authorize individual-capacity lawsuits for money damages. See, *e.g.*, H. R. Rep. No. 106–219, p. 29 (1999) (RLUIPA "track[s] RFRA, creating a private cause of action for damages, injunction, and declaratory judgment"); 146 Cong. Rec. 19123 (2000) (statement of Rep. Canady) (same); Religious Liberty: Hearing before the Senate Com-

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III

At long last, I arrive where today's majority starts. On the majority's view, no matter how clearly Congress speaks, all that matters is the response it elicits: Spending Clause legislation may not make anybody liable without their express consent. And because prison officials (as opposed to their state-prison employers) have not directly accepted federal funds, they have not consented to being sanctioned for their failure to follow federal law. *Ante*, at 67–70.

The majority's reasoning requires it to diminish two congressional powers and contort many more precedents of this Court. Stated simply, the Spending Clause contains no direct-consent requirement. The power it grants Congress "is of course not unlimited." *South Dakota* v. *Dole*, 483 U. S. 203, 207 (1987). But neither is it so cramped as the majority imagines. Most important, it is a power to *legislate*, not merely to *negotiate*. And if the Spending Clause falls short, the Necessary and Proper Clause supplies the additional power Congress needs to bind prison officials—state agents whose compliance is critical to RLUIPA's effective implementation.

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A

The Spending Clause is embedded within Congress's first enumerated power. It gives Congress the "Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States." U. S. Const., Art. I, § 8, cl. 1.

The authority to spend money for the "general Welfare" naturally includes the power to determine the general welfare and to ensure that expenditures further it. See, *e. g.*, *Helvering* v. *Davis*, 301 U. S. 619, 645 (1937). Thus, "Congress has broad power under the Spending Clause of the

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mittee on the Judiciary, 106th Cong., 1st Sess., p. 91 (1999) (statement of Douglas Laycock) ("Appropriate relief includes declaratory judgments, injunctions, and damages").

Constitution to set the terms on which it disburses federal funds." *Cummings*, 596 U. S., at 216. To exercise that spending power, Congress passes laws conditioning federal funding on compliance.

The product is, of course, federal law like any other—enacted via bicameralism and presentment, and constituting "the supreme Law of the Land." U. S. Const., Art. VI, cl. 2; see *Armstrong* v. *Exceptional Child Center, Inc.*, 575 U. S. 320, 324 (2015); *Health and Hospital Corporation of Marion Cty.* v. *Talevski*, 599 U. S. 166, 171–172 (2023). And such law may further not only Congress's other enumerated powers but also ends otherwise beyond Congress's reach. See *United States* v. *Butler*, 297 U. S. 1, 66 (1936).

For decades, the Court has used a consistent yardstick to measure the constitutionality of Spending Clause legislation. We crystallized that metric in *Dole*, 483 U. S. 203. Funding conditions in laws enacted pursuant to the Spending Clause must be in pursuit of the general welfare; unambiguously expressed; related to the federal interest; and not in violation of other constitutional provisions. *Id.*, at 207–208. The "financial inducement offered by Congress" also may not be "so coercive as to pass the point at which 'pressure turns into compulsion.' " *Id.*, at 211.

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When Congress "exercise[s] its Spending Power," we have long understood, "*Dole* provides the appropriate framework for assessing . . . constitutionality." *United States* v. *American Library Assn., Inc.*, 539 U. S. 194, 203, n. 2 (2003) (opinion of Rehnquist, C. J.). But neither respondents nor the majority attempts to invalidate RLUIPA under any of *Dole*'s prongs. Instead, they devise a new one: Spending Clause legislation can make liable only those who have directly and expressly consented to be made liable. See *ante*, at 69–70.

This new rule starts from a kernel of truth. Spending Clause legislation does not take effect of its own accord. It requires a funding recipient to accept funds, and thereby to consent to the accompanying conditions. In this way, spend-

ing legislation differs from other federal law, which may command without offering.

From that kernel, though, the majority sprouts a dramatic innovation. The conditions prescribed in Spending Clause legislation, the majority insists, may not bind anybody but the funding recipient itself, no matter the recipient's relationship to the nonrecipient (*i. e.*, sovereign, employer, or, as here, both), and no matter how essential the conditions are to Congress's spending program.

B

This novel consent requirement discards decades of Spending Clause and Necessary and Proper Clause precedent. This Court has upheld spending statutes that make RLUIPA look modest in its reach.

Recall that the individuals RLUIPA exposes to liability are state prison officials. These are agents of the State who voluntarily seek the State's employ and wield its power. The State—the funding recipient—thus exercises authority over them in two ways. As their employer, the State can place conditions on their employment. And as a sovereign, the State can govern their behavior. Under our precedents, either should have sufficed. With both, this is an easy case.

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Start with *Dole* itself. *Dole* upheld a federal law conditioning highway funding on States raising the legal age for purchasing or publicly possessing alcohol—that is, on States forbidding a category of behavior for young adults. 483 U. S., at 205. Underage drinkers are not the Federal Government's contracting partners. Cf. *id.*, at 218 (O'Connor, J., dissenting) (arguing that the law was unconstitutional because it was not "a condition determining how federal highway money shall be expended" but rather "a regulation determining who shall be able to drink liquor"). But we held that Congress could nonetheless use its spending power to regulate their drinking habits in this fashion.

Thus, one need look no further than this Court's most canonical Spending Clause case to cast doubt on the majority's

insistence on individual consent. "If South Dakota can agree to criminalize the behavior of its 19-year-old bourbon enthusiasts, it's unclear why Louisiana cannot agree to make its prison officials liable for forcibly shaving Damon Landor's head." 93 F. 4th 259, 265 (CA5 2024) (Oldham, J., dissenting from denial of rehearing en banc).[6]

The majority maintains that this is not *Dole*. RLUIPA is different, the majority says, because Congress has bound individual prison officials *directly* whereas the federal law in *Dole* did not act directly upon nonrecipients. Instead, that law "influence[d] a State's legislative choices," causing *the State* to regulate young drinkers. *New York* v. *United States*, 505 U. S. 144, 167 (1992) (discussing *Dole*); *ante*, at 73–74, n. 5. But that distinction makes no relevant difference. Either way, Congress has used its spending power to regulate individuals without their express consent. In *Dole*, the State exposed the individual to liability in exchange for federal funds. So too here.

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Regardless, in subsequent cases, we have not been squeamish about recognizing Congress's authority to regulate nonrecipients directly in service of protecting "the integrity and proper operation of the federal program." *Salinas* v. *United States*, 522 U. S. 52, 61 (1997). In *Salinas*, for instance, we harbored "no serious doubt about the constitutionality" of an anti-bribery statute that regulated individuals situated identically to the prison officials here—*i. e.*, "state and local officials employed by agencies receiving federal funds." See *id.*, at 58, 60. (*Salinas* thus checked both the "employer" and "sovereign" boxes.) And in *Sabri* v. *United States*, 541 U. S. 600 (2004), we went further still, explaining that the Spending Clause, buttressed by the Necessary and Proper Clause, empowered Congress to criminalize private individuals' bribery of state and local officials em-

[6] See also *Haight* v. *Thompson*, 763 F. 3d 554, 570 (CA6 2014) (Sutton, J.) (pointing out that the position the majority embraces today "is not consistent with *Dole*" or multiple other precedents of this Court).

ployed by entities receiving federal funds, see *id.*, at 605. The private individuals were complete strangers to the funding relationship between the Federal Government and the funded entities. No matter. Congress, we explained, can "bring federal power to bear directly on individuals" where necessary "to see to it that taxpayer dollars appropriated under [the Spending Clause] are in fact spent for the general welfare." *Id.*, at 605, 608.[7]

So it is not I but the majority that jettisons "a long line of this Court's precedents." *Ante*, at 75. We have lived for decades in a world in which Congress has been able to use its spending power to reach beyond direct recipients of federal funds. And it has done so repeatedly. In the Federal Nursing Home Reform Act, for instance, Congress authorized civil penalties against individual employees of federally funded nursing homes who falsify resident assessments. See 42 U. S. C. § 1396r(b)(3)(B)(ii). In the Emergency Medi-

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[7] Our statutory-interpretation cases teach the same lesson. Take *Grove City College* v. *Bell*, 465 U. S. 555 (1984), where we held that Title IX—a Spending Clause statute forbidding sex discrimination by recipients of federal funds—regulates a college that "accepts no direct [federal] assistance but enrolls students who receive federal grants," *id.*, at 558. We reasoned that the language of the statute "contain[ed] no hint that Congress perceived a substantive difference between direct institutional assistance and aid received by a school through its students." *Id.*, at 564; see also *National Collegiate Athletic Assn.* v. *Smith*, 525 U. S. 459, 468 (1999) ("Entities that receive federal assistance, whether directly or through an intermediary, are recipients within the meaning of Title IX"). We never suggested, much less held, that such a statutory scheme raised constitutional concerns. In fact, the college, lacking the gumption of today's Court, argued only that Congress *had not* bound indirect recipients through Title IX, not that it *could not*. The more extreme position (the one the majority adopts now) occurred to nobody.

The majority makes hay of the college's subsequent decision to stop welcoming students who received federal financial aid and therefore to escape Title IX. *Ante*, at 76. Of course, this same option is available to prison officials, who may likewise "exit the federal [funding] progra[m]" by seeking alternative employment. *Ibid.* (internal quotation marks omitted).

cal Treatment and Active Labor Act, Congress authorized civil penalties against doctors in federally funded hospitals who negligently violate the law's requirements. See 42 U. S. C. § 1395dd(d)(1)(B). And in Title X of the Public Health Service Act, Congress authorized fines and imprisonment for state officers and employees who coerce abortion or sterilization by threatening the loss of federally funded benefits. See 42 U. S. C. § 300a–8.

These are important measures, for obvious reasons. They are also required if these laws' intended ends are to be accomplished, for a "State can act only through its officials," and an institution only through its employees. *Pennhurst State School and Hospital* v. *Halderman*, 465 U. S. 89, 114, n. 25 (1984); cf. *Printz* v. *United States*, 521 U. S. 898, 931 (1997) ("To say that the Federal Government cannot control the State, but can control all of its officers, is to say nothing of significance"). Congress reasonably seeks to ensure compliance with its directives by giving individual actors imbued with state authority a personal stake in the matter. Nothing in the Constitution prevents Congress from designing Spending Clause statutes in this fashion.

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C

That should spell the end of this dispute. The Spending Clause has no strict direct-consent-to-liability requirement, and respondents offer no reason to think RLUIPA fails the traditional *Dole* test. But Congress has still more reservoirs of power from which to draw. The Necessary and Proper Clause "empowers Congress to enact laws in effectuation of its enumerated powers"—including the spending power—"that are not within its authority to enact in isolation." *Gonzales* v. *Raich*, 545 U. S. 1, 39 (2005) (Scalia, J., concurring in judgment); see *Sabri*, 541 U. S., at 605. Should RLUIPA's individual-capacity remedy require more power than the Spending Clause provides, the Necessary and Proper Clause supplies it.

This conclusion flows from a concession respondents make without reservation: "[T]here is no dispute that Louisiana prison officials must comply with RLUIPA's substantive protections." Brief for Respondents 46. Respondents, in other words, do not place prison officials beyond RLUIPA's substantive reach; accepting that RLUIPA imposes a duty on prison officials, they just seek to "exempt" those officials "from any of its liability provisions." *Department of Agriculture Rural Development Rural Housing Service* v. *Kirtz*, 601 U. S. 42, 62 (2024).

There is "no proper place in our jurisprudence" for this "wholly artificial" distinction. *Ibid.* (internal quotation marks omitted).[8] The Necessary and Proper Clause makes sure of it. That Clause enables "Congress to provide, by suitable penalties, for the enforcement of all legislation necessary or proper to the execution of powers with which it is intrusted." *United States* v. *Fox*, 95 U. S. 670, 672 (1878). So where an enumerated power enables Congress to prescribe rules, the Necessary and Proper Clause empowers Congress to "give those rules force by imposing consequences on [those] who disobey them." *United States* v. *Kebodeaux*, 570 U. S. 387, 400 (2013) (ROBERTS, C. J., concurring in judgment); *McCulloch* v. *Maryland*, 4 Wheat. 316, 416 (1819) (attributing to the Necessary and Proper Clause the government's ability to "punish any violation of its laws"); *Ex parte Yarbrough*, 110 U. S. 651, 658–659 (1884). That is all RLUIPA's cause of action does. It authorizes the extraction of money damages for behavior Congress concededly may proscribe.

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Notably, the majority does not contest the premise that Louisiana's prison officials must abide by RLUIPA. And it

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[8] What two years ago was "wholly artificial" today becomes the crux of the majority's decision, which depends entirely on divorcing law from liability, right from remedy. See, *e. g.*, *ante*, at 75–76, and n. 6 (distinguishing precedents of this Court and respondents' concession on the grounds that they "did not involve an attempt to impose personal liability").

admits, as it must, that a court may order prison officials in their official capacities to comply with RLUIPA. See *ante*, at 76–77, n. 6. But this leaves the majority in an odd spot. In the majority's view, the prison official's relationship to the State is close enough that "the actions of" the official are "the actions of the [State] itself" such that the official may stand in for the State in litigation, *Brandon* v. *Holt*, 469 U. S. 464, 472 (1985), but distant enough that the State's consent to damages liability on the official's behalf means nothing at all. There is no rational basis for that distinction.

Battling uphill, the majority reworks the Necessary and Proper Clause. The majority contends that, rather than allow Congress to enforce *statutes* passed pursuant to other enumerated powers, the Necessary and Proper Clause must facilitate the *enumerated power* itself. *Ante*, at 77. Only if a regulation is "a necessary and proper incident to Congress's constitutionally enumerated power," the majority insists, does the Necessary and Proper Clause justify it. *Ibid.*

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This is a deft maneuver but not a successful one, as it diverts our focus to the wrong relationship. "The relevant question is simply whether the means chosen are 'reasonably adapted' to the attainment of *a legitimate end*" sought under an enumerated power, not whether the means chosen are incidental to the power itself. *Gonzales*, 545 U. S., at 37 (Scalia, J., concurring in judgment) (quoting *United States* v. *Darby*, 312 U. S. 100, 121 (1941); emphasis added); see also *Kebodeaux*, 570 U. S., at 406 (Scalia, J., dissenting) ("[W]hat is necessary and proper to enforce a statute validly enacted pursuant to an enumerated power is . . . itself necessary and proper to the execution of an enumerated power").

Said otherwise, "we look to see whether the statute constitutes a means that is rationally related to the *implementation* of a constitutionally enumerated power." *United States* v. *Comstock*, 560 U. S. 126, 134 (2010) (emphasis added). This is why "the Necessary and Proper Clause . . . authorizes Congress, in the implementation of other explicit

powers, to create federal crimes, to confine offenders to prison" and more, *Kebodeaux*, 570 U. S., at 394–395—not because the power to imprison is incidental to the power to, say, regulate commerce, but because the power to imprison gives Congress the ability to "'make [its] regulation[s] effective,'" *Gonzales*, 545 U. S., at 36 (Scalia, J., concurring in judgment) (quoting *United States* v. *Wrightwood Dairy Co.*, 315 U. S. 110, 119 (1942)).[9]

The majority resorts finally to abstraction, retorting that the Necessary and Proper Clause does not permit Congress to "undermine the structure of [the federal] government established by the Constitution" or "violat[e] the principle of state sovereignty." *Ante*, at 79 (alterations in original; internal quotation marks omitted). I do not contest these assertions. It is the Court's application of them here that is baffling, since exposing state officials to damages liability does nothing so dramatic. That state officials might be vulnerable to federally imposed money judgments for unlawful conduct is a common feature of our federal system. See, *e. g.*, 42 U. S. C. § 1983. RLUIPA's imposition of damages liability for state officials comes as no surprise to States or their agents and by no means offends state sovereignty. The State chose to accept the funds with full knowledge of

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[9] Even viewed from a first-principles standpoint, the majority's framing makes little sense. The majority gives the Necessary and Proper Clause no independent work to do, rendering it superfluous rather than treating it as the adjunct the Framers envisioned. See, *e. g.*, *McCulloch* v. *Maryland*, 4 Wheat. 316, 417 (1819) (commenting that, although "the right to carry the mail, and to punish those who rob it, is not indispensably necessary to" the power "'to establish post offices and post roads,'" the Necessary and Proper Clause affords Congress the power to take those steps); see also Letter from A. Hamilton to G. Washington, Opinion on the Constitutionality of an Act To Establish a Bank (Feb. 23, 1791), in 8 Papers of Alexander Hamilton 70 (H. Syrett & J. Cooke eds. 1965) ("The clause . . . is evidently designed to place on an unequivocal footing the power of the government to employ all the means *fairly relative* to the execution of its specified powers and to the fulfilment of the objects entrusted to its direction").

RLUIPA's command, and the officials in turn chose to accept state employment with full knowledge of federal law.

That the Necessary and Proper Clause may extend the reach of the Spending Clause (as we have long recognized) does not, of course, mean that congressional power is unbounded. Contra, *ante*, at 79. But it does mean (as again we have long recognized) that where Congress may require compliance via law it may also secure compliance via imposition of liability, including damages.

IV

I do not doubt that difficult questions about the limits of Congress's spending power exist. But, as I have explained thus far, this case offered no opportunity to resolve them. Respondents seek to limit the Spending Clause in a manner directly contrary to our precedents. And when it comes to enforcement of a concededly proper exercise of congressional power, the Necessary and Proper Clause supplies any authority that the Spending Clause cannot.

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Let us, then, step back and examine the origin and consequences of the majority's unprecedented invocation of a "categorical font-of-power condition" limiting Congress's reach under the Spending Clause. *Talevski*, 599 U. S., at 192 (rejecting a similar effort). This limitation is not located in the Constitution's text; "[i]t is hard to imagine a broader statement of the scope of Congress's power" than the Spending Clause. E. Chemerinsky, Protecting the Spending Power, 4 Chapman L. Rev. 89, 93 (2001). And it is not in our precedents either—today's Court cannot successfully explain the decisions of yesterday's. Rather, it appears that the seeds of the majority's dramatic weakening of the spending power were first planted some time ago, and are rooted in a loose contract analogy the Court has repeatedly cautioned against taking as anything more. The majority supercharges that analogy here and now, ensuring that it comes to full flower. This may prove to be a consequential choice.

A

The contract analogy derives from the insight that Spending Clause legislation requires acceptance of federal funds before it can take hold, making it "much in the nature of a contract." *Pennhurst State School and Hospital* v. *Halderman*, 451 U. S. 1, 17 (1981). Until today, we have used that insight in two relatively modest ways, both as interpretive aids. First, the contract analogy gives rise to a clear-notice requirement. See, *e. g.*, *id.*, at 24–25; Part II–C, *supra*. Second, the analogy offers background principles to fill in gaps where a statute falls short of the required clarity. See, *e. g.*, *Cummings*, 596 U. S., at 220, 221 (explaining that a Spending Clause statute that is "silent as to available remedies" presumptively authorizes "the usual contract remedies" (emphasis deleted)); *Barnes*, 536 U. S., at 187 ("A funding recipient is generally on notice that it is subject not only to those remedies explicitly provided in the relevant legislation, but also to those remedies traditionally available in suits for breach of contract").

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But even when using the analogy for those purposes, the Court has always viewed it cautiously. We have consistently refused to "imply . . . that suits under Spending Clause legislation are suits in contract, or that contract-law principles apply to all issues that they raise." *Id.*, at 189, n. 2; see also *Sossamon*, 563 U. S., at 290 (same); *Cummings*, 596 U. S., at 226 (declining to "incorporat[e] the law of contract remedies wholesale"). Some Justices have warily accepted the contract analogy in certain contexts while cautioning that it "may fail" elsewhere. *Barnes*, 536 U. S., at 191 (Souter, J., concurring). Others have protested its use as "novel." *Id.*, at 192 (Stevens, J., concurring in judgment); *Talevski*, 599 U. S., at 193 (BARRETT, J., joined by ROBERTS, C. J., concurring). Still others have cast doubt on it as "an imperfect way" to interpret Spending Clause legislation. *Cummings*, 596 U. S., at 230 (KAVANAUGH, J., joined by GORSUCH, J., concurring). In all events, the Court has always

rejected the idea—though pressed with vigor in dissent—that Spending Clause legislation "is nothing more than a contractual offer." *Talevski*, 599 U. S., at 196 (THOMAS, J., dissenting); see also *id.*, at 229 (criticizing the Court for "holding that spending conditions are not merely contractual").

At most, the Court has accepted that Spending Clause legislation has "a contractual aspect" while steadfastly insisting that such laws nonetheless "cannot be viewed in the same manner as a bilateral contract governing a discrete transaction." *Bennett* v. *Kentucky Dept. of Ed.*, 470 U. S. 656, 669 (1985); accord, B. Fahey, Federalism by Contract, 129 Yale L. J. 2326, 2330 (2020) (noting spending statutes' "dual character" as "both contract-like instruments and public lawmaking instruments"). After all, "[u]nlike normal contractual undertakings," Spending Clause laws are "statut[es] . . . expressing the judgment of Congress concerning desirable public policy." *Bennett*, 470 U. S., at 669. Having undergone bicameralism and presentment, Spending Clause legislation "is legislation, in the end, not a buy-sell transaction." T. Seligmann, Muddy Waters: The Supreme Court and the Clear Statement Rule for Spending Clause Legislation, 84 Tulane L. Rev. 1067, 1120 (2010).

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Today the Court abandons its warranted caution. An interpretive guide becomes a *substantive* limitation on Congress's authority, as the Court takes a step toward embracing what one scholar has criticized as the "strong contract theory": the radical notion that Spending Clause legislation is not just " 'in the nature of' a contract," but is in fact "*nothing but* a contract." S. Bagenstos, Spending Clause Litigation in the Roberts Court, 58 Duke L. J. 345, 385 (2008) (quoting *Pennhurst*, 451 U. S., at 17).

Strange as it seems, today's majority appears to mean it. One indication is the majority's concession that "Congress *could have* lawfully imposed personal liability on the individual defendants" *if* it had tweaked RLUIPA to better conform

to the Court's understanding of the limits of contract law. *Ante*, at 71. "For example," the majority allows, "Congress could have said that, as a condition of federal funding to LDOC, its officers had to agree to enter separate contracts with the federal government consenting to answer suits under RLUIPA." *Ibid.* "Or," the majority posits, "Congress might have conditioned its funds on Louisiana's agreement to exercise its own regulatory powers to adopt a state law cause of action enforceable against LDOC officers who violate RLUIPA." *Ibid.* Those arrangements, the majority assures us, would have sufficed for Spending Clause purposes. But the one Congress chose fails because it hews insufficiently to the tenets of binding contractual relationships.

Of course, the arrangement Congress chose is not far off from the "untapped possibilities" the Court prefers. *Ibid.* RLUIPA is no secret. Prison officials know when they sign up to work at a state prison that they must obey the law or face the consequences the law prescribes; this is simply "a consequence of their decision to accept employment." *Rust* v. *Sullivan*, 500 U. S. 173, 199 (1991); Brief for Former Correctional Officials as *Amici Curiae* 13–16. What meaningful difference would it make to have them sign a contract attesting to that knowledge?[10] Similarly, it makes no mean-

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[10] Such attestation would likely be unnecessary even if this were a true contract case. Under the doctrine of implied consent, courts may recognize an agreement "which, although not embodied in an express contract, is inferred . . . from conduct of the parties showing, in the light of the surrounding circumstances, their tacit understanding." *Baltimore & Ohio R. Co.* v. *United States*, 261 U. S. 592, 597 (1923). "[A] reasonably competent public official should know the law governing his conduct." *Harlow* v. *Fitzgerald*, 457 U. S. 800, 819 (1982); see also *Heckler* v. *Community Health Services of Crawford Cty., Inc.*, 467 U. S. 51, 63 (1984) (noting "the general rule that those who deal with the Government," and especially "those who seek public funds," "are expected to know the law"). And prison officials manifest their assent to RLUIPA by showing up to work each day.

ingful difference for Congress to require a State to flex its own legislative power to bind state officials rather than allow the Federal Government to make state officials liable directly, as federal law so often does. The majority, in other words, deals in form, not substance.

The emptiness of the majority's formalism is further illustrated by the parade of horribles it trots out. The majority warns that, if RLUIPA's individual-capacity damages provision is constitutional, Congress could subject college coaches to liability if they refuse "to permit transgender athletes to play women's sports," or make doctors personally liable if they "administe[r] certain vaccines to children." *Ante*, at 74–75. What the majority intends by these examples is not clear. Congress could of course impose these conditions on the colleges and medical practices themselves, assuming they receive federal funds and the laws are otherwise constitutional and not coercive.[11] Congress's reach thus remains the same either way; all that changes is whether noncompliant coaches and doctors lose their jobs (in the majority's world) or become liable in damages (in Congress's, and therefore mine).

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So the Court's ruling apparently boils down to dissatisfaction with the precise way Congress structured RLUIPA. Such hairsplitting undervalues Congress's lawmaking prerogative; we ought not substitute our rigid contract-based preferences for Congress's considered statutory design. "Some play must be allowed for the joints of the machine, and it must be remembered that legislatures are ultimate guardians of the liberties and welfare of the people in quite as great a degree as the courts." *Missouri, K. & T. R. Co.* v. *May*, 194 U. S. 267, 270 (1904). Taking this wisdom to heart, the Court usually exhibits a well-founded "reticence to invalidate the acts of the Nation's elected leaders." *Na-*

[11] A Title IX case currently pending before us asks whether Congress imposed the majority's first "hypothetical" condition on federally funded educational institutions. See *West Virginia* v. *B. P. J.*, No. 24–43.

tional Federation of Independent Business v. *Sebelius*, 567 U. S. 519, 537–538 (2012) (opinion of ROBERTS, C. J.). In my view, an ill-formed analogy to contract law is a regrettable basis on which to turn reticence into enthusiasm.

B

Ultimately, I fear that the majority has now conjured an apparition to replace a once-efficacious vision of Congress's spending power—a constitutional grant of authority that is central to the design and functioning of our federal system. History demonstrates that power's significance.

Under the Articles of Confederation, the power to tax remained with the States. See Art. VIII; see also Art. II. This arrangement left the Federal Government largely dependent upon the States, eager for their cooperation but struggling to secure it. D. Spencer, Sanctuary Cities and the Power of the Purse: An Executive *Dole* Test, 106 Iowa L. Rev. 1209, 1218 (2021). Thus, one major motivation for the new Constitution was to give the Federal Government the tools "to better incentivize states to work collectively for the good of the entire Union." *Ibid.* Granting Congress the power to tax allowed the Federal Government to amass the resources it needed to dangle those incentives. And granting Congress the power to spend allowed the Federal Government to follow through.

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Follow through it has. We owe to the Spending Clause, for example, Title VI of the Civil Rights Act of 1964—a law with which "few pieces of federal legislation rank in significance." *Bostock* v. *Clayton County*, 590 U. S. 644, 649 (2020); see *Students for Fair Admissions, Inc.* v. *President and Fellows of Harvard College*, 600 U. S. 181, 308 (2023) (GORSUCH, J., concurring). We owe to the Spending Clause, too, the relative cleanliness of our Nation's air, see 42 U. S. C. §7401 *et seq.* (Clean Air Act), and the relative health of our Nation's populace, 42 U. S. C. §1395 *et seq.*; §1396 *et seq.* (Medicare and Medicaid Acts). "Other examples, spanning

virtually every domain of national and state policy, abound." *Talevski*, 599 U. S., at 198 (THOMAS, J., dissenting).

While today's decision does not endanger those laws directly, the majority's reasoning casts a shadow that will not easily be escaped. No one knows what changes lie at the end of a strict contract-law construction of the spending power. But, as Members of this Court have long recognized, importing contract principles wholesale could have "potentially far-reaching consequences." *Barnes*, 536 U. S., at 192 (Stevens, J., concurring in judgment).

Indeed, it is our rejection of the strict contract analogy that renders Spending Clause rights enforceable under § 1983. See *Talevski*, 599 U. S., at 229 (THOMAS, J., dissenting); accord, D. Engdahl, The Contract Thesis of the Federal Spending Power, 52 S. D. L. Rev. 496, 510 (2007). Similarly, contracts presumably may not preempt state law, yet Spending Clause legislation can do so. See, *e. g.*, *Dalton* v. *Little Rock Family Planning Services*, 516 U. S. 474, 476 (1996) (*per curiam*); *Bennett* v. *Arkansas*, 485 U. S. 395, 396 (1988) (*per curiam*); *Philpott* v. *Essex County Welfare Bd.*, 409 U. S. 413, 417 (1973); *Townsend* v. *Swank*, 404 U. S. 282, 286 (1971). And Congress likely could not hitch its Necessary and Proper power to a mere contract, either, see Engdahl, 52 S. D. L. Rev., at 532, but we have blessed just this cocktail of enumerated powers, see *Sabri*, 541 U. S., at 605.

This means that today's decision might well land a serious blow to Congress's effectiveness. Or it could end up merely a bothersome statutory drafting guide: If Congress adapts its Spending Clause legislation to fit the Court's newly prescribed formulas—and if the Court lets it do so—then the majority's robotic importation of contract principles will have little real-world effect. Either way, though, "[t]he suggestion that [Spending Clause] statutes are not 'law' on the same level as other pieces of legislation makes little sense." See A. Gluck, Our [National] Federalism, 123 Yale L. J. 1996, 2031 (2014). And it makes even less sense of the jurispru-

dence that has developed for decades around those laws, to the great benefit of the American people.

As for RLUIPA itself, the consequences are more predictable. Prisoners like Landor who suffer violations of their religious freedom in state prisons—no matter how blatant—will often be left remediless. And encroachments on prisoners' statutory rights are likely to happen with fair frequency, as state-empowered prison officials will have little incentive to abide by federal law, even if it is handed to them on a piece of paper.

* * *

When *Sossamon* concluded that RLUIPA did not expose States and their institutions to damages liability, JUSTICE SOTOMAYOR lamented that the Court's holding left RLUIPA plaintiffs "to seek enforcement of [their] rights with one hand tied behind their backs." 563 U. S., at 303 (dissenting opinion). Today the Court ties the other hand.

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To be clear, the Court's decision does not eliminate all damages liability from RLUIPA. See *ante*, at 65, n. 1. A prisoner who happens to be housed in a local rather than state jail may recover damages from the municipality, which neither enjoys sovereign immunity, see *Jinks* v. *Richland County*, 538 U. S. 456, 466 (2003), nor suffers from the indirect-recipient defect the Court identifies, see *Barnett* v. *Short*, 129 F. 4th 534, 542 (CA8 2025). Furthermore, RLUIPA channels the commerce power, rather than the spending power, in some of its applications. See 42 U. S. C. §2000cc–1(b)(2). So the rare RLUIPA plaintiff who finds a Commerce Clause hook may recover damages, too. See *Tripathy* v. *McKoy*, 103 F. 4th 106, 115, n. 6 (CA2 2024). But Congress did not enact such a patchwork scheme, and the Constitution does not demand it.

Yet the Court imposes such a scheme today. The Court does so by concluding that, even where Congress can legislate under the Spending Clause, it may be left powerless to

enforce that legislation in the way it chooses. This development is as new as it is peculiar, and it devalues precedent and congressional authority alike.

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